Title 43—PUBLIC LANDS: INTERIOR

Chapter I—Bureau of Land Management, Department of the Interior

APPENDIX—PUBLIC LAND ORDERS

[Public Land Order 2543]

[87335]

UTAH

Opening Lands Subject to Section 24 of the Federal Power Act

1. In DA–141–Utah, the Federal Power Commission determined that the value of the following described lands, withdrawn in Power Site Reserve No. 122 and Power Site Classification No. 219, would not be injured or destroyed for purposes of power development by location, entry, or selection under the public land laws, subject to the provisions of section 24 of the Federal Power Act of June 10, 1920 (41 Stat. 1075; 16 U.S.C. 818), as amended, and subject to the condition that in the event said lands are required for power purposes, any improvements or structures placed thereon which shall be found to interfere with such development shall be removed or relocated as may be necessary to eliminate interference with power development at no cost to the United States, its permittees or licensees:

SALT LAKE MERIDIAN

T. 40 S., R. 22 E.

Power Site Reserve No. 122

Sec. 29, lots 3, 4, 6, and NW¼NW¼.

Power Site Classification No. 219

Sec. 30, N½NE¼ and NE¼NW¼.

Containing 162.72 acres.

2. Subject to section 24 of the Federal Power Act, supra, and the condition recited in paragraph 1 of this order, the lands are hereby restored to the operation of the public land laws, subject to valid existing rights and equitable claims, the requirements of applicable law, rules, and regulations, and the provisions of any existing withdrawals provided, that, until 10:00 a.m. on May 22, 1962, the State of Utah shall have a preferred right to apply to select the lands in accordance with subsection (c) of section 2 of the act of August 27, 1958 (72 Stat. 928; 43 U.S.C. 851, 852). During this period the State may also apply for the reservation to it or to any of its political subdivisions, under any regulation or statute applicable thereto, of any of the lands required for rights-of-way or for materials sites in accordance with the provisions of the said section 24 of the Federal Power Act.

3. The lands have been open to applications and offers under the mineral leasing laws, and to location under the United States mining laws.

Inquiries concerning the lands should be addressed to the Manager, Land Office, Bureau of Land Management, Salt Lake City, Utah.

JOHN A. CARVER, Jr.,
Assistant Secretary of the Interior.

NOVEMBER 22, 1961.

[F.R. Doc. 61–11363; Filed, Nov. 30, 1961; 8:46 a.m.]

[Public Land Order 2544]

COLORADO

Power Site Cancellation No. 164; Partly Revoking Power Site Classification No. 89; Opening Lands Under Section 24 of the Federal Power Act (Power Site Reserve No. 116)

By virtue of the authority contained in the act of March 3, 1879 (20 Stat. 394; 43 U.S.C. 31) and in section 24 of the Federal Power Act of June 10, 1920 (41 Stat. 1075; 16 U.S.C. 818), as amended, and pursuant to determinations of the Federal Power Commission in DA–435 and DA–431, Colorado, it is ordered as follows:

1. The departmental order of February 24, 1925, designated Power Site Classification No. 89, is hereby cancelled so far as it affects the following described lands (DA–435):

[Colorado 042350]

SIXTH PRINCIPAL MERIDIAN

T. 4 S., R. 85 W.,
Sec. 31, lots 7 and 8.

Containing 24.30 acres.

The lands have been classified for disposition only under the provisions of the Recreation and Public Purposes Act of June 14, 1926 (44 Stat. 741; 43 U.S.C. 869–869–3), as amended. Therefore, they shall not be subject to disposition under any other public land law unless and until it is so provided by further order of an authorized officer of the Bureau of Land Management opening the lands to such disposition.

2. In DA–431–Colorado, the Federal Power Commission determined that the value of the following described lands, withdrawn for Power Site Reserve No. 116, would not be injured or destroyed for purposes of power development by location, entry, or selection under the public land laws, subject to the provisions of section 24 of the Federal Power Act, as amended:

[Colorado 035502]

SIXTH PRINCIPAL MERIDIAN

T. 4 S., R. 86 W.,
Sec. 10, lot 3.

Containing 33.48 acres.

3. Subject to the provisions of section 24 of the Federal Power Act, the lands described in paragraph 2 of this order are hereby restored to operation of the public land laws, subject to valid existing rights and equitable claims, the requirements of applicable law, rules and regulations, and the provisions of any existing withdrawals provided, that, until 10:00 a.m. on May 22, 1962, the State of Colorado shall have a preferred right of application to select the lands in accordance with subsection (c) of section 2 of the act of August 27, 1958 (72 Stat. 928; 43 U.S.C. 851, 852). During this period, the State may also apply for the reservation to it or to any of its political subdivisions, under any statute or regulation applicable thereto, of any of the lands required for rights-of-way or materials sites, in accordance with the provisions of section 24 of the Federal Power Act, supra. The lands have been open to applications and offers under the mineral leasing laws, and to location under the United States mining laws.

Inquiries concerning the lands should be addressed to the Manager, Land Office, Bureau of Land Management, Denver, Colorado.

JOHN A. CARVER, Jr.,
Assistant Secretary of the Interior.

NOVEMBER 22, 1961.

[F.R. Doc. 61–11364; Filed, Nov. 30, 1961; 8:46 a.m.]

[Public Land Order 2546]

ALASKA

Withdrawing Lands for Use of the Forest Service as Administrative Sites; Partly Revoking Public Land Order No. 842 of June 19, 1952

By virtue of the authority vested in the President, and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

1. Subject to valid existing rights, the following described lands are hereby withdrawn as indicated, and reserved for use of the Forest Service, Department of Agriculture, as administrative sites:

a. From all forms of appropriation under the public land laws, including the mining laws:

[Juneau 011213]

AUKE BAY AREA

Auke Bay Administrative Site

Lot 1, U.S. Survey 3819 (unapproved).

Containing 0.73 acre.

b. From prospecting, location, entry, and purchase under the mining laws of the United States:

[Juneau 011940]

DOUGLAS ISLAND AREA

TONGASS NATIONAL FOREST

North Douglas Administrative Site

Beginning at a point N. 10°29′ E., 102.81 chains from Corner No. 2 of U.S.S. No. 1555 and also N. 63° W., 0.14 chains from Station P–569+00 on the P-Line of B.P.R. North Douglas Forest Highway Extension No. 30; thence West, 8.0 chains; North, 8.04 chains to the line of mean high water; Easterly, 10.19 chains with the line of mean high water; S. 9° W., 9.96 chains to the point of beginning.

Containing 6.86 acres.

2. Public Land Order No. 842 of June 19, 1952, is hereby revoked so far as it affects the land described in paragraph 1(a) of this order.

JOHN A. CARVER, Jr.,
Assistant Secretary of the Interior.

NOVEMBER 22, 1961.

[F.R. Doc. 61–11366; Filed, Nov. 30, 1961; 8:46 a.m.]